

SUPREME COURT OF THE STATE OF NEW YORK
COUNTY OF BRONX

MY'ASHA ROUNDTREE,

Plaintiff,

-against-

SUMMONS

THE CITY OF NEW YORK; NEW YORK CITY POLICE
DEPARTMENT ("NYPD") OFFICER LANAY
REYES, SHIELD NO. 21530, 47th PRECINCT; NYPD
OFFICER WINGHONG LAU, SHIELD NO. 24578,
47th PRECINCT; NYPD OFFICER ROSIBEL KERY,
SHIELD NO. 19293, 47th PRECINCT; NYPD OFFICER
FIRST NAME UNKNOWN NUNEZ,
47th PRECINCT; NYPD OFFICER FIRST NAME
UNKNOWN HERENA, 47th PRECINCT; NYPD
OFFICER JOHN OR JANE DOE 1-20, 47th PRECINCT,

Index No.:

The Basis of Venue is:
Location of Incident

Plaintiff designates
BRONX County as the
place of trial.

Defendants.

To the above-named Defendants:

You are hereby summoned to answer the Verified Complaint in this action, and to serve a copy of your Verified Answer to the Verified Complaint, or, if the Verified Complaint is not served with this Summons, to serve a notice of appearance on the Plaintiff's attorneys within twenty days after the service of this Summons, exclusive of the day of service, where service is made by delivery upon you personally within the state, or, within 30 days after completion of service where service is made in any other manner. In case of your failure to appear or answer, judgment will be taken against you by default for the relief demanded in the complaint.

DATED: New York, New York
August 25, 2021

By: 
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NYPD OFFICER ROSIBEL KERY, SHIELD NO. 19293, 47TH PRECINCT;
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NYPD OFFICER FIRST NAME UNKNOWN HERENA, 47TH PRECINCT;
NYPD OFFICER JOHN/JANE DOES 1-20, 47TH PRECINCT
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SUPREME COURT OF THE STATE OF NEW YORK
COUNTY OF BRONX

MY'ASHA ROUNDTREE,

VERIFIED COMPLAINT

Plaintiff,

-against-

JURY TRIAL DEMANDED

THE CITY OF NEW YORK; NEW YORK CITY POLICE
DEPARTMENT ("NYPD") OFFICER LANAY
REYES, SHIELD NO. 21530, 47h PRECINCT; NYPD
OFFICER WINGHONG LAU, SHIELD NO. 24578,
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FIRST NAME UNKNOWN NUNEZ,
47TH PRECINCT; NYPD OFFICER FIRST NAME
UNKNOWN HERENA, 47TH PRECINCT; NYPD
OFFICER JOHN OR JANE DOE 1-20, 47TH PRECINCT,
Defendants.

Index No.:

Plaintiff MY'ASHA ROUNDTREE, by her attorneys, The Bronx Defenders,
Cohen & Green, PLLC, and Gideon Orion Oliver, as and for the Verified Complaint
herein, alleges as follows:

PRELIMINARY STATEMENT

1. Plaintiff My'asha Roundtree ("Ms. Roundtree") brings this action to vindicate her rights under New York State law and constitutions of the State of New York and the United States of America that were violated during the 36 hours she was in police custody where NYPD officers repeatedly assaulted Ms. Roundtree; denied her medical treatment, bathroom use, and water; and subjected her to numerous other acts of humiliation, violence, and indignity.

JURISDICTION AND VENUE

2. Ms. Roundtree brings this action pursuant to the Constitution and common laws of the State of New York as well as pursuant to 42 U.S.C. §§ 1983 and

1988 for violations of Ms. Roundtree's rights under the Fourth, Eighth, and Fourteenth Amendments to the Constitution of the United States.

3. An award of costs and attorney's fees is authorized pursuant to 42 U.S.C § 1988

4. The causes of action all arise within the State of New York in Bronx County.

5. Venue is proper in Bronx County under C.P.L.R. § 503(a) as the action is against Defendant City of New York and the underlying events occurred in Bronx County.

6. Ms. Roundtree has been damaged in a sum that exceeds the jurisdictional limits of all lower courts, which might otherwise have jurisdiction.

GENERAL MUNICIPAL LAW COMPLIANCE

7. Ms. Roundtree timely served a Notice of Claim on the City of New York on August 24, 2020 with respect to claims arising under New York Law on May 28, 2020.

8. Ms. Roundtree sat for a hearing consistent to General Municipal Law 50-h on May 28, 2021.

9. More than 30 days have elapsed since the Notice of Claim was served and Defendant City has neglected and/or refused to make adjustment, settlement, or payment with respect to the injuries complained of.

10. This action has been initiated within one year and ninety days of the accrual of Plaintiff's claims pursuant to New York State Law.

JURY TRIAL DEMAND

Ms. Roundtree demands a jury trial on each of Ms. Roundtree's claims for which a jury trial is allowed.

PARTIES

11. Plaintiff MY'ASHA ROUNDTREE currently resides in the State of New York, County of New York.

12. Defendant, CITY OF NEW YORK (the "City") is a municipal entity created and authorized under the laws of the State of New York. The City is authorized by law to maintain a police department, and does maintain the New York City Police Department ("NYPD"), which acts as its agent in the area of law enforcement and for which it is ultimately responsible. The city assumes the risks incidental to the maintenance of a police force and the employment of police officers.

13. Defendants OFFICER LANAY REYES, SHIELD NO. 21530, 47th PRECINCT; NYPD OFFICER WINGHONG LAU, SHIELD NO. 24578, 47TH PRECINCT; NYPD OFFICER ROSIBEL KERY, SHIELD NO. 19293, 47TH PRECINCT; NYPD OFFICER FIRST NAME UNKNOWN NUNEZ, 47TH PRECINCT; NYPD OFFICER FIRST NAME UNKNOWN HERENA, 47TH PRECINCT; NYPD OFFICER JOHN/JANE DOE 1-20, 47TH PRECINCT; (collectively, the "Individual Defendants") are NYPD members who were personally involved in violating Ms. Roundtree's rights, as set forth below.

14. At all times hereinafter mentioned, the Individual Defendants were acting under color of state law and/or in compliance with the official rules, regulations, laws, statutes, customs, usages and/or practices of the City of New York.

15. All the acts and omissions of the Individual Defendants alleged herein occurred while said Defendants were acting within the scope of their employment by the Defendant City.

16. At all times relevant herein, the Individual Defendants were duly appointed and acting officers, servants, employees, and agents of Defendant City who were acting for, and on behalf of, and with the power and authority vested in them by Defendant City, and were otherwise performing and engaging in conduct incidental to the performance of their lawful functions in the course of their duties.

17. At all times relevant herein, the Individual Defendants performed the various actions described herein and lending their physical presence and support and the authority of their offices to one another.

18. At all times relevant herein, as set forth more fully below, Defendants' actions and/or failures to act were malicious, intentional, knowing, and/or with a deliberate indifference to or a reckless regard for the natural and probable consequences of their acts and/or omissions.

19. The Individual Defendants are each entitled to indemnification by the City of New York under New York law for any liability arising from their conduct described herein.

STATEMENT OF FACTS

20. On May 26, 2020 NYPD officers entered Ms. Roundtree's apartment without a warrant seeking to arrest her over allegations of misdemeanor assault.

21. After speaking with her counsel, Ms. Roundtree arranged to turn herself in two days later.

22. On the morning of May 28, 2020, Ms. Roundtree arrived at the NYPD's 47th Precinct ("the precinct") to voluntarily turn herself in on the charges, which were ultimately dismissed and sealed.

23. After Defendant John Doe 1 placed Ms. Roundtree in a holding cell at the precinct, she repeatedly asked Defendants Reyes and John/Jane Does 1-10 if she could change her sanitary napkin, for water and food, and to make a phone call to her attorney.

24. Defendants Reyes and John/Jane Does 1-10 repeatedly ignored Ms. Roundtree's requests.

25. Eventually, Defendant Reyes permitted Ms. Roundtree to use the bathroom to change her sanitary napkin.

26. After Ms. Roundtree entered the bathroom and closed the door behind her, Defendant Reyes intentionally kicked the door open, striking Ms. Roundtree in the head, and denying Ms. Roundtree privacy.

27. When Ms. Roundtree exited the bathroom, Defendant John Doe 2 slammed her against the wall, placed handcuffs on her, and excessively tightened them.

28. Ms. Roundtree repeatedly complained that her handcuffs were excessively tight to Defendants Reyes and John/Jane Does 1-10 who passed her cell and requested medical attention for her wrists.

29. Defendants Reyes and John/Jane Does 1-10 ignored Ms. Roundtree's repeated requests.

30. Defendant John Doe 3 told Ms. Roundtree that they would only allow her to get medical attention if she fainted.

31. The NYPD moved Ms. Roundtree along with five men in custody to an NYPD transport van.

32. While in the NYPD transport van, a man in custody told Defendant Herena and Defendant John Doe 4 that he needed to use the bathroom.

33. Defendant Herena told the man in custody to urinate in a cup or a can on the floor of the NYPD transport van, which Defendant Herena gave him.

34. The man in custody struggled to pull down his pants while handcuffed and then attempted to urinate into the cup or can while still handcuffed in the back of the van with Ms. Roundtree present.

35. Ms. Roundtree complained about the male detainee urinating in front of her to Defendants Herena and John Doe 4.

36. In response to Ms. Roundtree's complaint, John Doe 4 responded, in sum and substance, "It seems like we have a snitch in here."

37. Ms. Roundtree then sat in the NYPD transport van for hours with the other people who were detained outside of the courthouse until the NYPD officers' shift changed.

38. After the shift change, and without letting Ms. Roundtree or any other person being detained out of the NYPD transport van, the officers drove the van back to the precinct.

39. At this point, Ms. Roundtree had been in the NYPD transport van for approximately four hours and in police custody for approximately eight to nine

hours. Throughout this time, Ms. Roundtree was restrained with excessively tight handcuffs and had been repeatedly denied food, water, and medical attention.

40. When the NYPD transport van returned to the precinct Ms. Roundtree again repeatedly requested that NYPD officers loosen her excessively tight handcuffs, allow her to change her sanitary napkin, and allow her to call her lawyer.

41. In response, Defendant Lau told Ms. Roundtree to “shut the fuck up” and shoved her.

42. Ms. Roundtree asked Defendant Lau not to touch her, at which point, Defendant Lau shoved her face against the wall, put his hands around her neck, and began to choke her.

43. Defendants John/Jane Does 11-19 observed Defendant Lau assaulting Ms. Roundtree but did nothing to intervene.

44. As NYPD officers then began the process of moving Ms. Roundtree and other detainees into an NYPD transport van for a second time, Ms. Roundtree again complained about her excessively tight handcuffs to Defendant Kery and John/Jane Does 11-19.

45. In response to Ms. Roundtree’s complaints, Defendant Kery squeezed Ms. Roundtree’s handcuffs tighter, causing her more pain, and did not double lock the handcuffs, allowing the handcuffs to become continuously tighter over time.

46. Defendant Kery then threw Ms. Roundtree headfirst into the NYPD transport van.

47. When the NYPD transport van arrived at the courthouse, Ms. Roundtree again complained of her tight handcuffs and asked for medical attention to John/Jane Does 11 and 12.

48. It was only at this point that John/Jane Does 11 and 12 took Ms. Roundtree to the hospital.

49. While at the hospital, Defendant John Doe 20 and Defendant Nunez refused to loosen her handcuffs or ankle shackles despite repeated requests.

50. While at the hospital, a nurse and an X-Ray technician asked the officers to loosen the handcuffs because, based on their observations of Ms. Roundtree's hands, the handcuffs were too tight.

51. At the hospital, Defendant John Doe 20 and Defendant Nunez, without cause or justification, grabbed Ms. Roundtree by the hair and forced her face into a pillow on a bed while screaming and cursing at her and twisted her arms.

52. Because of the Defendants' conduct, Ms. Roundtree suffered physical injuries, including to her wrists and ankles from her excessively tight handcuffs and ankle shackles.

53. As a result of the above unconstitutional conduct, the Individual Defendants are liable for punitive damages.

FIRST CAUSE OF ACTION

Assault and Battery

(Under New York State Law)

54. Ms. Roundtree incorporates by reference the allegations set forth in all preceding and following paragraphs as if fully set forth herein.

55. Defendant Reyes placed Ms. Roundtree in imminent apprehension of harm or offensive contact when Defendant Reyes kicked the bathroom door open and Ms. Roundtree saw it swing toward her head. Defendant Reyes also, without consent, made intentional, offensive, bodily contact with Ms. Roundtree when Defendant Reyes kicked the bathroom door and the door hit Ms. Roundtree in the head.

56. Defendant John Doe 2 placed Ms. Roundtree in fear of imminent apprehension of harm or offensive contact when Defendant John Doe 2 approached Ms. Roundtree with arms raised with the intent of forcing Ms. Roundtree against a wall. Defendant John Doe 2, without consent, made intentional offensive, bodily contact with Ms. Roundtree when Defendant John Doe 2 forcibly grabbed and restraint Ms. Roundtree before forcing her against a wall.

57. Defendant John Doe 2, without consent, made intentional offensive, bodily contact with Ms. Roundtree when Defendant John Doe 2 placed handcuffs on Ms. Roundtree's wrists and excessively tightened them.

58. Defendant Lau placed Ms. Roundtree in imminent apprehension of harm or offensive contact when he approached Ms. Roundtree with his arms raised yelling at her to "shut the fuck up." Defendant Doe Lau also, without consent, made intentional offensive, bodily contact with Ms. Roundtree when he shoved Ms. Roundtree and told her to "shut the fuck up."

59. Defendant Doe Lau, without consent, made intentional offensive, bodily contact with Ms. Roundtree when he shoved Ms. Roundtree's face against a wall, placed his hands around Ms. Roundtree's neck, and began to choke her.

60. Defendant Kery, without consent, made intentional offensive, bodily contact with Ms. Roundtree when she squeezed Ms. Roundtree's cuffs even tighter in response to Ms. Roundtree informing Defendant Kery that the cuffs were too tight.

61. Defendant Kery, without consent, made intentional offensive, bodily contact with Ms. Roundtree when she threw Ms. Roundtree headfirst into the NYPD transport van.

62. Defendant John Doe 20 and Defendant Nunez placed Ms. Roundtree in imminent apprehension of harm or offensive contact when they approached Ms. Roundtree yelling at her and raising their hands as they prepared to force her onto a bed. They then, without consent, made intentional offensive bodily contact with Ms. Roundtree when they grabbed Ms. Roundtree by the hair and forced her face into a pillow on a bed while also twisting her arms and spreading her legs.

63. By the conduct described above, Defendants Reyes, John Doe 2, Lau, and Kery assaulted and battered Ms. Roundtree and are liable to Ms. Roundtree under New York State Tort Law.

64. Ms. Roundtree was physically and otherwise injured because of the assault and battery by Defendants Reyes, John Doe 2, Lau, and Kery and continues to suffer physically.

SECOND CAUSE OF ACTION

Negligent Hiring, Retention, Training and Supervision

(Under New York State Law)

65. Ms. Roundtree incorporates by reference the allegations set forth in all preceding and following paragraphs as if fully set forth herein.

66. The City of New York and its employees, servants and/or agents acting within the scope of their employment negligently hired, screened, retained, trained, and supervised the Individual Defendants.

67. Upon information and belief, the Defendant City knew or should have known through the exercise of reasonable diligence that the Individual Defendants were unfit for their positions.

68. As a direct and proximate result of the Defendants' acts and omissions, Defendants deprived Ms. Roundtree of her liberty as well as her constitutional and legal rights; caused Ms. Roundtree pain, suffering, psychological, emotional injury, and/or humiliation.

THIRD CAUSE OF ACTION

Failure to Intervene

(Theory of Liability)

69. Ms. Roundtree incorporates by reference the allegations set forth in all preceding and following paragraphs as if fully set forth herein.

70. Each of the individual Defendants were present when the others violated Ms. Roundtree's rights as described elsewhere herein, and had a reasonable opportunity to prevent the violations of Ms. Roundtree's rights but failed to intervene to do so.

71. As a direct and proximate result of Defendants' acts and omissions, Defendants deprived Plaintiff of her liberty as well as her constitutional and legal rights; caused Plaintiff pain, suffering, psychological, emotional injury, and/or humiliation;

caused Plaintiff to expend costs and expenses; and otherwise damaged and injured Plaintiff.

FOURTH CAUSE OF ACTION

Respondeat Superior – Against Defendant City of New York

(Under New York Law)

72. Ms. Roundtree incorporates by reference the allegations set forth in all preceding and following paragraphs as if fully set forth herein.

73. The conduct of the Individual Defendants alleged herein occurred while they were on duty and/or in and during the course and scope of their duties and functions as police officials, and/or while they were acting as agents and employees of Defendant City, clothed with and/or invoking state power and/or authority, and, as a result, Defendant City is liable to the Plaintiff pursuant to the state common law doctrine of *respondeat superior*.

74. As a direct and proximate result of Defendants' acts and omissions, Defendants deprived Plaintiff of her liberty as well as her constitutional and legal rights; caused Plaintiff pain, suffering, psychological, emotional injury, and/or humiliation; caused Plaintiff to expend costs and expenses; and otherwise damaged and injured Plaintiff.

FIFTH CAUSE OF ACTION

Excessive Force

(Under 42 U.S.C § 1983 for Violation of Plaintiff's Rights Secured Under the Fourth, Eighth, and Fourteenth Amendments to the United States Constitution)

75. Ms. Roundtree incorporates by reference the allegations set forth in all preceding and following paragraphs as if fully set forth herein.

76. The use of excessive force by Defendants by slamming her against a wall; excessively tightening her handcuffs; choking her; subjecting her to a male detainee urinating in front of her; repeatedly ignoring her requests for food, water, and to change her sanitary napkin; shoving her face in a pillow at the hospital; twisting her arms at the hospital; and unnecessarily detaining her for 36 hours.

77. All the above acts constitute objectively unreasonable physical seizures of Ms. Roundtree, and through 42 U.S.C § 1983, constitute a violation of her rights Fourth, Eighth, and Fourteenth Amendments to the Constitution of the United States and to be free of a deprivation of liberty under the Fourteenth Amendment to the Constitution of the United States.

78. As a result of the foregoing, Ms. Roundtree suffered bodily injury, pain and suffering, emotional injury, humiliation, costs, and expenses, and was otherwise damaged and injured.

SIXTH CAUSE OF ACTION

Deliberate Indifference to Medical Needs

(Under 42 U.S.C § 1983 for Violation of Plaintiff's Rights Secured Under the Fourteenth Amendment to the United States Constitution)

79. Ms. Roundtree incorporates by reference the allegations set forth in all preceding and following paragraphs as if fully set forth herein.

80. Defendants, despite being aware that Ms. Roundtree was suffering severe wrist and ankle pain while in their custody, which required treatment from medical

professionals, delayed Ms. Roundtree's medical treatment and refused to administer and properly procure immediate and adequate medical attention.

81. The delay in medical treatment to Ms. Roundtree's injuries resulted in more serious injuries than would have occurred if Ms. Roundtree had received treatment in a timely manner.

82. As a direct and proximate result of such acts, Defendants deprived Ms. Roundtree of her rights under the laws of the State of New York.

83. Defendants were at all times agents, servants, and employees acting within the scope of their employment by the City of New York and the New York City Police Department, which are therefore responsible for their conduct.

84. The City, as the employer of the Individual Defendants, is responsible for their wrongdoing under the doctrine of *respondeat superior*.

85. As a result of the aforementioned conduct of Defendants, Plaintiff sustained injuries, including but not limited to emotional and psychological injuries.

SEVENTH CAUSE OF ACTION

Unconstitutional Conditions of Confinement in Violation of the 14th Amendment Right to Due Process of Law

(Fourteenth Amendment to the U.S. Constitution, 42 U.S.C § 1983)

86. Ms. Roundtree incorporates by reference the allegations set forth in all preceding and following paragraphs as if fully set forth herein.

87. By the conduct described in the proceeding and following paragraphs, the Individual Defendants deprived Ms. Roundtree of her clearly established constitutional right to constitutional conditions of confinement. Ms. Roundtree's basic human needs included being able to change her sanitary napkin, being permitted to use

the bathroom, being able to communicate with her attorney, and not being forced to witness an individual attempt to urinate into a can while handcuffed.

88. The Defendants knew about Ms. Roundtree's basic human need because Ms. Roundtree repeatedly informed them of her needs and requested they change their behavior.

89. Nevertheless, the Defendants consciously disregarded Ms. Roundtree's basic human needs when they repeatedly ignored her requests for medical attention.

PRAYER FOR RELIEF

WHEREFORE, Plaintiff MY'ASHA ROUNDTREE demands the following relief:

- a. Compensatory damages against all Individual Defendants and the City of New York;
- b. Punitive damages against all Individual Defendants and the City of New York;
- c. The convening and empaneling of a jury to consider the merits of the claims herein;
- d. Costs and interest and attorney's fees; and
- e. Such other and further relief as this court may deem appropriate and equitable.

DATED: New York, New York
August 25, 2021

By: 
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ATTORNEY'S VERIFICATION

MICHAEL ALEXANDER THOMAS, an attorney duly admitted to practice before the Courts of the State of New York, affirms the following to be true under the penalties of perjury:

I am an attorney associated with the Bronx Defenders. I have read the annexed **VERIFIED COMPLAINT** and know the contents thereof, and the same are true to my knowledge, except those matters therein which are stated to be alleged upon information and belief, and as to those matters I believe them to be true. My belief, as to those matters therein not stated upon knowledge, is based upon facts, records, and other pertinent information contained in my files. The reason this verification is made by me and not Plaintiff is because Plaintiff does not reside in the county wherein I maintain my office.

To the best of my knowledge, information, and belief, formed after an inquiry that was reasonable under the circumstances, the presentation of these papers or the contentions therein are not frivolous as defined in subsection (c) of section 130-1.1 of the Rules of the Chief Administrator (22 NYCRR).

A handwritten signature in blue ink, appearing to read "Michael A. Thomas", is written over a horizontal line.

MICHAEL ALEXANDER THOMAS

DATED: Bronx, New York
 August 25, 2021